

**Before the
Federal Maritime Commission**

Docket No. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.

v.

**ORIENT OVERSEAS CONTAINER LINE LTD. AND OOCL
(EUROPE) LTD.**

**DECLARATION OF REBECCA A. FENNEMAN IN SUPPORT OF RESPONDENT'S
RESPONSE TO COMPLAINANT'S MOTION FOR SANCTIONS**

I, Rebecca A. Fenneman, hereby declare as follows:

1. I am a Partner at Jeffrey/Fenneman Law + Strategy, PLLC and counsel for Respondents Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. ("OOCL" or "Respondents"). I submit this Declaration in support of OOCL's Response to Complainant Samsung Electronics America, Inc.'s ("SEA" or "Complainant") Motion for Default.
2. I am the lead attorney for OOCL in this matter, am fully familiar with the proceedings in this case, and have personal knowledge of the facts set forth in this declaration.
3. The Parties did agree on an ESI Protocol, but they did not discuss or agree on custodians or search terms they wished the opposing party to employ in this matter. Initial disclosures which included names of individuals each Party believed likely to have discoverable information were exchanged on December 19, 2024.

4. On February 20, 2026, I contacted counsel for SEA to request a conference to discuss the Order issued by the Presiding Officer in this matter on that date. A true and correct copy of that email communication is attached as **Exhibit A**.

5. On February 23, 2026, I contacted counsel for SEA to request “SEA provide a complete list of custodians (other than those appearing in OOCL’s initial disclosures) that it wants OOCL to search, and a set of search terms no later than February 27. The reasonable time for the completion of such supplemental production (if any is necessary) will depend on the breadth of SEA’s requested search terms and additional custodians, and the resulting additional quantity of documents (if any) that will require additional review and preparation for production. For discussion purposes on Wednesday, the attached draft is what we can tentatively propose.” A true and correct copy of that email is attached as **Exhibit B**.

6. On February 27, 2026, I communicated again with counsel for SEA, sending “a list of search terms we have applied to ESI (these are in addition to BL/SWB and container numbers appearing in 24-17_SEA_0059845). Please provide any comments on these terms by March 3.” A true and correct copy of that email is attached as **Exhibit C**. A true and correct copy of the attachment “Search Terms.xlsx” is attached as **Exhibit C1**.

7. On March 10, 2026, I received a letter via email from Mr. Peter Black, counsel for SEA. Mr. Black stated, “SEA suggests that the following additional search terms may assist with returning relevant documents:” A true and correct copy of that letter is attached as **Exhibit D**.

8. On March 10, 2026, counsel for OOCL Mr. Christopher Raleigh immediately forwarded via email **Exhibit D** to Mr. Kenneth Carruth and instructed him to apply those search terms to all

of the documents that had been provided by OOCL to Co-Discover. A true and correct copy of that email is attached as **Exhibit E**.

9. On March 13, 2026, I instructed my associate, Nicholas L. Webb, to serve the sworn declarations of Mr. Gavin Murdoch, Mr. Kenneth Carruth, and Ms. Tracy Sha on counsel for SEA, as required by the Order of the Presiding Officer dated February 20, 2026. Mr. Webb duly served the declarations on counsel for SEA on March 13, 2026.

10. On March 18, 2026, Mr. Kenneth Carruth of OOCL's e-discovery provider requested clarification of

“the search terms below: [...]

Port AND congestion [limit results to Maher and LB]

Container AND Capacity [limit results to Maher and LB]

Chassis AND capacity [limit results to Maher and LB]

All of the other terms have been applied, so the above are the only ones that are outstanding.”

A true and correct copy of Mr. Carruth's email dated March 18, 2026 is attached as **Exhibit F**

11. On March 23, 2026, I communicated again with counsel for SEA via email seeking clarification to the search terms included in Paragraph 2 of SEA's letter dated March 10, 2026. I requested counsel for SEA respond by COB March 24. A true and correct copy of that email is attached as **Exhibit G**.

12. On March 24, 2026, I again communicated with counsel for SEA via email, explaining why I had sought clarification of the search terms listed in my March 23, 2026 email (**Exhibit G**). A true and correct copy of that email is attached as **Exhibit H**.

13. On April 2, 2026, Ms. Evelyn Jordan of OOCL's e-discovery provider CoDiscover served OOCL's ninth production of documents on SEA (“OOCL PROD0009”). OOCL_0058576-

OOCL_0077540. The following day, I communicated with counsel for SEA via email explaining “this production (OOCL PROD009) consists of the results of re-running searches against collections that were identified as having an anomaly, as attested in Mr. Carruth’s declaration of March 13, 2026. Please let us know if you have any questions.” A true and correct copy of that email is attached as **Exhibit I**.

14. On April 11, 2026, Mr. Carruth of CoDiscover served OOCL’s tenth production of documents (OOCL PROD0010)(OOCL_0077541 - OOCL_0500751) on SEA.

15. On April 11, 2026, Mr. Carruth served OOCL’s eleventh production of documents (OOCL PROD0011) (OOCL_0500752 - OOCL_0609859) on SEA.

16. On April 13, 2026, I sent a letter to counsel for SEA describing OOCL’s tenth and eleventh productions of documents. In that letter I noted, “PROD010 was the result of an additional search of every document collected by OOCL using the search terms as discussed between the parties via exchanges of emails and letters dated February 23, 24, 27, March 5, and 10, 2026....PROD011 was the result of a search of every document collected by OOCL for each and every container number and bill of lading (sea waybill) number contained in Samsung Electronic America’s (SEA) spreadsheet marked 24-17_SEA_00059845, as confirmed by counsel via email dated February 24, 2026.” A true and correct copy of that letter is attached as **Exhibit J**.

17. On April 28, 2026, I requested Ms. Jordan of Co-Discover to produce a report of the search terms used for OOCL PROD0010. Ms. Jordan sent me the list, a true and correct copy of which is attached as **Exhibit K**.

18. On May 11, 2026, the Supplemental Declaration of Kenneth Carruth was served on SEA.
A true and correct copy of the Carruth Supplemental Declaration is attached as **Exhibit L**.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: May 11, 2026

/s/ Rebecca A. Fenneman

**EXHIBITS TO FENNEMAN DECLARATION IN SUPPORT OF
RESPONDENT'S RESPONSE TO COMPLAINANT'S MOTION FOR
SANCTIONS**

EXHIBIT A



Rebecca Fenneman <rfenneman@jeffreyyfenneman.com>

FMC Docket No. 24-17 - SEA v. OOCL

Rebecca Fenneman <rfenneman@jeffreyyfenneman.com>

Fri, Feb 20, 2026 at 11:23 AM

To: "Peter F. Black" <pblack@millsblack.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>, Kate Fitzgerald <kfitzgerald@millsblack.com>

Cc: Christopher Raleigh <craleigh@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Kaya Massey <kmasey@jeffreyyfenneman.com>, "Sobotta, Kathryn" <ksobotta@cozen.com>, Nicholas Webb <nwebb@jeffreyyfenneman.com>

Bcc: Eric Jeffrey <ejeffrey@jeffreyyfenneman.com>

Counsel,

Are you available for a meet and confer next Tuesday (2/24) morning? We will circulate a proposed draft procedural schedule.

Thanks,

Rebecca

--
Rebecca A. Fenneman
700 12th Street, NW
Suite 700
Washington, DC 20005
Tel. +1 202 904 2301
Admitted in DC and Maryland

**JEFFREY | FENNEMAN**

LAW + STRATEGY, PLLC

*****PRIVILEGED AND CONFIDENTIAL COMMUNICATION*****

EXHIBIT B



Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

FMC Docket No. 24-17 - SEA v. OOCL

Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Mon, Feb 23, 2026 at 4:50 PM

To: "Peter F. Black" <pblack@millsblack.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>, Kate Fitzgerald <kfitzgerald@millsblack.com>

Cc: Christopher Raleigh <craleigh@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Kaya Massey <kmassey@jeffreyfenneman.com>, "Sobotta, Kathryn" <ksobotta@cozen.com>, Nicholas Webb <nwebb@jeffreyfenneman.com>

Bcc: Eric Jeffrey <ejeffrey@jeffreyfenneman.com>

Counsel,

Attached is our draft procedural schedule for discussion on Wednesday. We appreciate your thoughts prior to our scheduled meeting.

You will note that it is quite incomplete, as much depends on SEA's position.

Specifically:

1. Unless SEA informs us otherwise, OOCL will use the (de-duped) BL/SWB and container numbers listed in SEA's document marked 24-17_SEA_00059845 to search for responsive shipment documents.
2. OOCL requests that SEA provide a complete list of all custodians (other than those appearing in OOCL's initial disclosures) that it wants OOCL to search, and a set of search terms no later than February 27. The reasonable time for the completion of such supplemental production (if any is necessary) will depend on the breadth of SEA's requested search terms and additional custodians, and the resulting additional quantity of documents (if any) that will require additional review and preparation for production. For discussion purposes on Wednesday, the attached draft is what we can tentatively propose.
3. Of course, the time required for depositions will necessarily depend on the number of witnesses the Parties intend to depose. OOCL estimates it will likely depose no more than 8 witnesses. If SEA estimates that it will require 19 (or more?) depositions, we submit that the deposition period should be no less than 90 days, with the remaining dates to be pushed back commensurately.

Thanks for letting us know your thoughts so we may prepare additional drafts for circulation prior to our meeting.

Thanks,

Rebecca

[Quoted text hidden]

**OOCL draft schedule 2 20 26 - v.3.docx**

26K

EXHIBIT C



Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

FMC Docket No. 24-17 - SEA v. OOCL

Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Fri, Feb 27, 2026 at 12:09 PM

To: "Peter F. Black" <pblack@millsblack.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>, Kate Fitzgerald <kfitzgerald@millsblack.com>

Cc: Christopher Raleigh <craleigh@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Kaya Massey <kmassey@jeffreyfenneman.com>, "Sobotta, Kathryn" <ksobotta@cozen.com>, Nicholas Webb <nwebb@jeffreyfenneman.com>

Dear Peter, Allen, Imran and Kate:

Thanks for discussing the schedule and other matters Wednesday.

As discussed and in anticipation of our call this afternoon, please find attached a draft Joint Status Report and Motion incorporating the procedural schedule simplified as we discussed, but with one addition not discussed on Wednesday - we have included a proposed date for close of discovery (October 19).

Also attached as discussed on Wednesday, please find a list of the search terms we have applied to ESI (these are in addition to BL/SWB and container numbers appearing in 24-17_SEA_0059845). Please provide any comments on these terms by March 3.

Thanks and we'll talk to you soon.

Best,

Rebecca

[Quoted text hidden]

2 attachments**Search Terms.xlsx**

10K

**JSR 7 (March 2026) v.1.docx**

46K

EXHIBIT C1

Name
"motor carrier" w/5 nominated
"motor carrier" w/5 CNT
"motor carrier" w/5 agreement
(trucker w/5 nominated) AND (Samsung OR SEA)
trucker w/5 CNT
trucker w/5 agreement
"motor carrier" w/3 services
"motor carrier" or trucker AND (Samsung or SEA or SDS)
"warehouse" or Facilit* or stor* AND (Samsung or SEA or SDS)
waive w/5 charge or mitigat* or cancel
(waive or charge or mitigat* or cancel) AND detention
(waive or charge or mitigat* or cancel) AND demurrage AND (Samsung OR SEA)
(waive or charge or mitigat* or cancel) AND costs
extend w/5 "free time"
charge* AND responsib* AND (Samsung or SEA or SDS)
cost* AND responsib* AND (Samsung or SEA or SDS)
fee* AND responsib* AND (Samsung or SEA or SDS)
demand* AND pay*
pay* AND detention
(pay* AND demurrage) AND (Samsung OR SEA)
dispute* AND detention
dispute* AND demurrage
insufficient AND information
insufficient AND detail
basis AND detention
basis AND demurrage
(Samsung or SEA or SDS) AND detention
(Samsung or SEA or SDS) AND demurrage
Container AND belong
Container w/3 not AND own*
"Samsung container"
Rebill
Previous* w/3 bill*
Duplicate* AND bill*

Twice AND bill*
Handling AND delay*
Processing AND delay*
(Container AND delay*) AND (Samsung OR SEA)
Warehouse AND delay*
Deliver* AND delay*
(Pay AND direct*) AND (Samsung OR SEA)
(Release* AND container* AND pay*) AND (Samsung OR SEA)
Retaliat*
Refus* AND space
Refus* AND cargo
Den* AND space
(Den* AND cargo) AND (Samsung OR SEA)
(Space AND available) AND (Samsung OR SEA)
Cannot w/3 accept
“can’t” w/3 accept
Decline* w/3 accept
Unable w/3 accept
“common carrier”
Obligation AND carrier
Obligation AND (Samsung or SEA or SDS)
(Responsib* AND carrier) AND (Samsung OR SEA)
Responsib* AND (Samsung or SEA or SDS)
Rail* w/3 demurrage
Rail* w/3 storage
terminal w/3 storage
terminal w/3 demurrage
Bethel AND (Samsung or SEA or SDS)
Pennsylvania AND (Samsung or SEA or SDS)
Maher AND (Samsung or SEA or SDS)
“peel-off”
“New York” AND (Samsung or SEA or SDS)

EXHIBIT D



1215 19th Street, NW
Washington, DC 20036
MillsBlack.com

PETER F. BLACK
Partner
pblack@millsblack.com
+ 202.967.4103 (D)
+ 646.902.1773 (C)

March 10, 2026

VIA EMAIL

Rebecca A. Fenneman, Esq. (RFenneman@JeffreyFrenneman.com)
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW, Suite 700
Washington, DC 20005

Christopher Raleigh (CRaleigh@cozen.com)
Cozen O'Connor
2001 M Street NW, Suite 500
Washington, DC 20036

Re: *FMC Docket No. 24-17 - SEA v. OOCL*

Dear Rebecca and Chris:

This letter responds to OOCL's request for SEA to review and provide comments on OOCL-provided search terms.

While SEA offers the suggestions below, SEA is not yet aware of the full extent or limits of the discovery efforts undertaken by OOCL to date including, but not limited to, which custodians and systems may have already been searched, the date parameters applied, and which terms may have already been utilized in OOCL's search. Further, SEA lacks sufficient familiarity with OOCL's internal organization, procedures, and workings to be able to identify which search terms may be over- or under-inclusive and thus require adjustment. Additionally, the inclusion in searches of internal references or corporate shorthand unknown to SEA may be necessary to comprehensively respond to SEA's requests. Accordingly, while SEA wishes to work cooperatively with OOCL to ensure that OOCL produces the full extent of discovery materials requested by SEA, SEA notes that the ultimate obligation to comply with SEA's discovery requests remains with OOCL.

Subject to those caveats, SEA offers the following comments with respect to the search terms noted by OOCL on February 27, 2026:

1. *General Comments and Suggestions*
 - a. The search terms provided are disconnected from specific Interrogatories and Requests for Production. This makes it difficult for SEA to suggest terms which are necessary or

may be extraneous in light of the specific request. Further clarification on this point would assist OOCL in identifying, and SEA in suggesting, additional terms or in limiting terms to target specific items sought.

- b. Searches may need to be conducted in multiple languages including English, Chinese, and Korean to fully capture relevant and responsive correspondence.
- c. Searches should be conducted broadly, inclusive of all relevant data systems and individual, generic, corporate, and location-specific repositories
- d. Searches related to “rail” (Excel rows 59-60) are unnecessary, as previously discussed.
- e. SEA does not understand the necessity and/or context of the following excel row items:
 - 19, 20, 24-27, 30, 31, 33-36, 42, 47-48, 54, 66
- f. It may be necessary to include “SEA” or “Samsung” or “SDS” to limit the return to relevant documents for the following row items:
 - 12, 14, 15, 19, 20, 22-23, 26-27, 33-38, 40-41, 50-55
- g. OOCL may wish to consider amending some items, such as removing “container” from Row 39

2. *Additional Search Suggestions*

After reviewing of the provided search terms, SEA suggests that the following additional search terms may assist with returning relevant documents:

- Gate schedule AND Long Beach or LALB or LGB or LBCT
- Gate and Long Beach or LALB or LGB or LBCT
- Gate Schedule and Maher or NYC or New York or NY
- Gate and Maher or NYC or New York or NY
- CNT w/5 agreement
- CNT or Customer nominated AND responsibility or obligation or liable or risk
- Undelivered AND Samsung or SEA
- Abandoned AND Samsung or SEA
- Long-dwell OR longdwell OR long dwell AND Samsung or SEA
- LFD Advice AND Samsung or SEA
- All container numbers and sea waybills
- Long Beach or LALB or LGB or LBCT AND
 - Samsung or SEA or SDS
 - Congestion
 - Capacity
- Maher or NYC or NY or New York AND
 - Samsung or SEA or SDS

- Congestion
- Capacity
- SDD or Store door AND policy or Guideline
- SDD or store door AND Samsung or SEA
- SDD or store door or carrier haulage AND CY or Container Yard move or merchant haulage AND conver*
- Harvest
- Goldpoint OR gold point or GP
- AV Logistics or “ AV ”
- RP Logistics
- Advanced International Freight or AIF
- UNIS Transportation or UNIS
- ASL Global Logistics
- UTU Logistics
- KCH Transportation
- Lotte Global Logistics
- Port AND congestion [limit results to Maher and LB]
- Container AND Capacity [limit results to Maher and LB]
- Chassis AND capacity [limit results to Maher and LB]
- hold AND Samsung or SEA
- unable AND CNT or trucker or Goldpoint or gold point or GP or Harvest)
- Dispute* and Samsung or SEA

The above suggestions are not intended to reach or include privileged materials, do not encompass the full scope of necessary searches, and are suggestions only; OOCL's searches should not be limited solely to the above-listed words and phrases, as noted at the outset of this letter.

Sincerely,

Peter F. Black
MILLS BLACK LLP
Counsel to Samsung Electronics America, Inc.

EXHIBIT E



Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

SEA v. OOCL

Raleigh, Christopher <CRaleigh@cozen.com>

Tue, Mar 10, 2026 at 6:26 PM

To: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Cc: "Carruth, Kenneth" <KCarruth@cozen.com>, "Sobotta, Kathryn" <KSobotta@cozen.com>, Nick Webb <nwebb@jeffreyfenneman.com>, "Rohde, Wayne" <WRohde@cozen.com>

I agree.

Ken, attached is a copy of letter received minutes ago from SEA's counsel which provides additional search terms. Let us know if these can be added and run against OOCL's data. If you want to have another call, let us know and we can set it up.

Chris

**Christopher Raleigh****Member | Cozen O'Connor**

2001 M Street NW, Suite 500 | Washington, DC 20036

P: 212-908-1245 F: 866-591-9125

[Email](#) | [Bio](#) | [LinkedIn](#) | [Map](#) | [cozen.com](#)

From: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>**Sent:** Tuesday, March 10, 2026 6:16 PM**To:** Raleigh, Christopher <CRaleigh@cozen.com>**Cc:** Carruth, Kenneth <KCarruth@cozen.com>; Sobotta, Kathryn <KSobotta@cozen.com>; Nick Webb <nwebb@jeffreyfenneman.com>; Rohde, Wayne <WRohde@cozen.com>**Subject:** Re: SEA v. OOCL****EXTERNAL SENDER****

[Quoted text hidden]

[Quoted text hidden]

**2026.03.10- SEA LTR re Search Terms.pdf**
239K

EXHIBIT F



Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

SEA v. OOCL

Carruth, Kenneth <KCarruth@cozen.com>

Wed, Mar 18, 2026 at 12:32 PM

To: "Raleigh, Christopher" <CRaleigh@cozen.com>, Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Cc: "Sobotta, Kathryn" <KSobotta@cozen.com>, Nick Webb <nwebb@jeffreyfenneman.com>, "Rohde, Wayne" <WRohde@cozen.com>

Hi Team,

Can you all provide some clarity re: the search terms below:

All container numbers and sea waybills

Port AND congestion [limit results to Maher and LB]

Container AND Capacity [limit results to Maher and LB]

Chassis AND capacity [limit results to Maher and LB]

All of the other terms have been applied, so the above are the only ones that are outstanding. Once clarification is provided, we can provide you all with some numbers.

Regards,

Upcoming PTO: March 11, 2026**Upcoming PTO: March 16, 2026****Kenneth A. Carruth III****Assistant Director**

1650 Market Street, Suite 2800 | Philadelphia, PA 19103

P: 215-665-6955

[Email](#) | [Map](#) | [CODISCOVER.com](#)

From: Raleigh, Christopher <CRaleigh@cozen.com>
Sent: Tuesday, March 10, 2026 6:26 PM
To: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

[Quoted text hidden]

[Quoted text hidden]

[Quoted text hidden]

EXHIBIT G



Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

FMC Docket No. 24-17 - SEA v. OOCL

Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Mon, Mar 23, 2026 at 3:05 PM

To: "Peter F. Black" <pblack@millsblack.com>

Cc: Christopher Raleigh <craleigh@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Kaya Massey <kmasssey@jeffreyfenneman.com>, "Sobotta, Kathryn" <ksobotta@cozen.com>, Nicholas Webb <nwebb@jeffreyfenneman.com>, Kate Fitzgerald <kfitzgerald@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>, Allen Black <hablack@millsblack.com>

Peter,

We would like clarify some of the additional search suggestions listed in paragraph 2 of your March 10, 2026 letter.

Specifically, you listed:

Port AND congestion [limit results to Maher and LB]

Container AND Capacity [limit results to Maher and LB]

Chassis AND capacity [limit results to Maher and LB]

In lieu of "LB" which we do not understand to be commonly used, we instead suggest "Long Beach", "LGB" and/or "LBCT" to adequately capture the relevant location, as follows:

"Port" AND "congestion" AND "Maher"

"Port" AND "congestion" AND "Long Beach"

"Port" AND "congestion" AND "LBCT"

"Port" AND "congestion" AND "LALB"

"Port" AND "congestion" AND "LGB"

"Container" AND "Capacity" AND "Maher"

"Container" AND "Capacity" AND "Long Beach"

"Container" AND "Capacity" AND "LBCT"

"Container" AND "Capacity" AND "LALB"

"Container" AND "Capacity" AND "LGB"

"Chassis" AND "capacity" AND "Maher"

"Chassis" AND "capacity" AND "Long Beach"

"Chassis" AND "capacity" AND "LBCT"

"Chassis" AND "capacity" AND "LALB"

"Chassis" AND "capacity" AND "LGB"

Please let us know by COB tomorrow, Tuesday March 24 if you have any concerns with the above searches.

Thanks,
Rebecca

[Quoted text hidden]

EXHIBIT H



Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

FMC Docket No. 24-17 - SEA v. OOCL

Rebecca Fenneman <rfenneman@jeffreyfenneman.com>

Tue, Mar 24, 2026 at 3:04 PM

To: "Peter F. Black" <pblack@millsblack.com>

Cc: Christopher Raleigh <craleigh@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Kaya Massey <kmassey@jeffreyfenneman.com>, "Sobotta, Kathryn" <ksobotta@cozen.com>, Nicholas Webb <nwebb@jeffreyfenneman.com>, Kate Fitzgerald <kfitzgerald@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>, Allen Black <hablack@millsblack.com>

Dear Peter,

Thank you. To re-iterate, we are constructing these searches to meet your requirements of Paragraph 2 of those terms as you previously set out and seeking your confirmation because the search terms you provided were somewhat vague. The rest were clear to us and did not require any further discussion.

Thanks again for your confirmation and we will proceed as agreed.

Best,

Rebecca

[Quoted text hidden]

EXHIBIT I



Rebecca Fenneman <rfenneman@jeffreyyfenneman.com>

OOCL Document Production(PROD009)

Rebecca Fenneman <rfenneman@jeffreyyfenneman.com>

Fri, Apr 3, 2026 at 10:53 AM

To: ishaukat@millsblack.com, hallenblack@millsblack.com, kfitzgerald@millsblack.com, pblack@millsblack.com, hablack@millsblack.com

Cc: craleigh@cozen.com, ejordan@cozen.com, ejeffrey@jeffreyyfenneman.com, kcarruth@cozen.com, kmassey@jeffreyyfenneman.com, ksobotta@cozen.com, nwebb@jeffreyyfenneman.com, wrohde@cozen.com

Counsel:

For your further reference and explanation, this production (OOCL PROD009) consists of the results of re-running searches against collections that were identified as having an anomaly, as attested in Mr. Carruth's declaration of March 13, 2026.

Please let us know if you have any questions.

Best,

Rebecca

[Quoted text hidden]

--

Rebecca A. Fenneman
700 12th Street, NW
Suite 700
Washington, DC 20005
Tel. +1 202 904 2301
Admitted in DC and Maryland

**JEFFREY | FENNEMAN**

LAW + STRATEGY, PLLC

*****PRIVILEGED AND CONFIDENTIAL COMMUNICATION*****

EXHIBIT J



JEFFREY | FENNEMAN

LAW + STRATEGY, PLLC

Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Tel. (202) 904-2301

April 13, 2026

Peter F. Black
H. Allen Black
Imran Shaukat
Kate Fitzgerald
Mills Black LLP
1215 19th Street, NW
Washington, DC 20036

VIA EMAIL

RE: FMC Docket No. 24-17, Samsung Electronics America, Inc. v. Orient Overseas Container Line, Ltd. and OOCL (Europe), Ltd. – OOCL Production Notes

Dear Counsel:

We write to provide descriptions of the tenth and eleventh productions of documents that were served by Orient Overseas Container Line, Ltd. and OOCL (Europe), Ltd. (“OOCL”) via file transfer protocol on April 10, 2026, and that were designated as “OOCL PROD010” and “OOCL PROD011.”

1. PROD010

PROD010 was the result of an additional search of every document collected by OOCL using the search terms as discussed between the parties via exchanges of emails and letters dated February 23, 24, 27, March 5 and 10, 2026. The details of PROD010 were as follows:

Total number of Docs: 158,220

Total number of Pages: 423,211

Production Bates Range: OOCL_0077541 - OOCL_0500751

Production Format: Images, Natives, Searchable Text & Load Files

2. PROD011

PROD011 was the result of a search of every document collected by OOCL for each and every container number and bill of lading (sea waybill) number contained in Samsung Electronics America, Inc.'s (SEA) spreadsheet marked 24-17_SEA_00059845, as confirmed by counsel via email dated February 24, 2026. The details of PROD011 were as follows:

Total Number of Documents: 29,898

Total Number of Pages: 109,108

Production Bates Range: OOCL_0500752 - OOCL_0609859

Production Format: Images, Natives, Searchable Text & Load Files

OOCL believes these additional productions address the concerns expressed by SEA regarding the scope of OOCL's searches and the completeness of its previous productions, and further believes that its document production is complete, subject to any supplemental productions which may be required to resolve disputes arising from objections which have been made in good faith and have not been waived.

OOCL requests confirmation from SEA as to whether it anticipates the production of any additional documents prior to the April 30, 2026 deadline for the completion of the production of documents. We look forward to your prompt reply.

Sincerely,

Rebecca A. Fenneman

Rebecca A. Fenneman

*Counsel for Orient Overseas Container Line, Ltd.
and OOCL (Europe), Ltd.*

EXHIBIT K

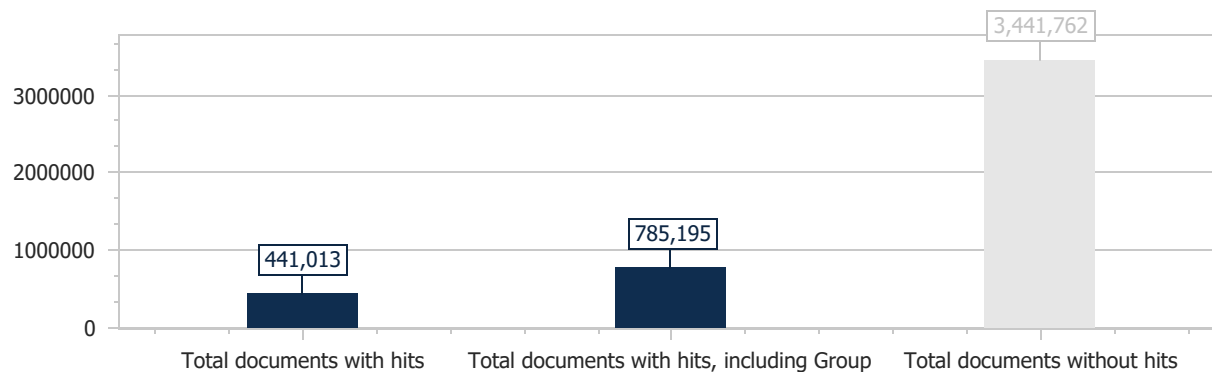


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Search Terms Report

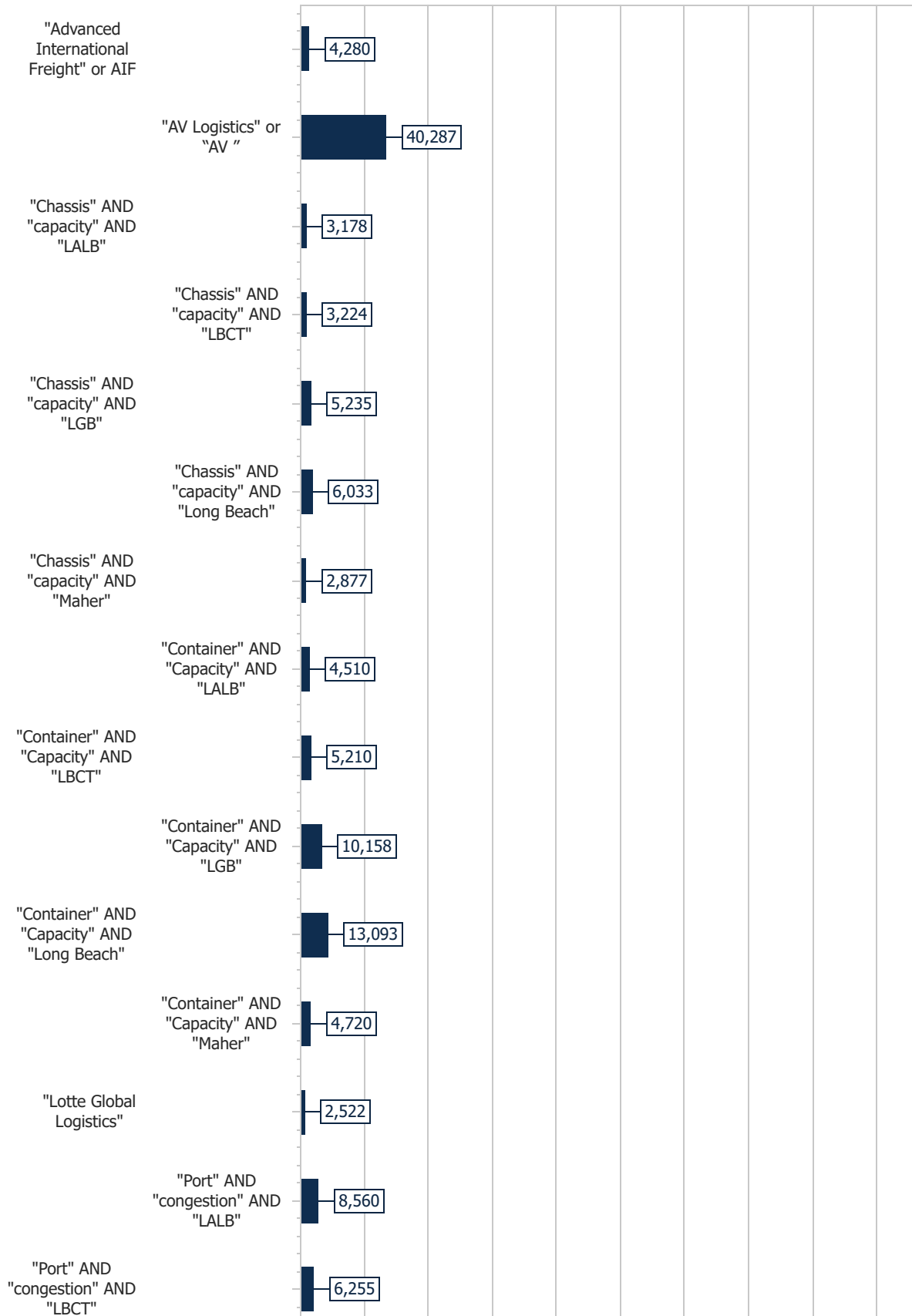
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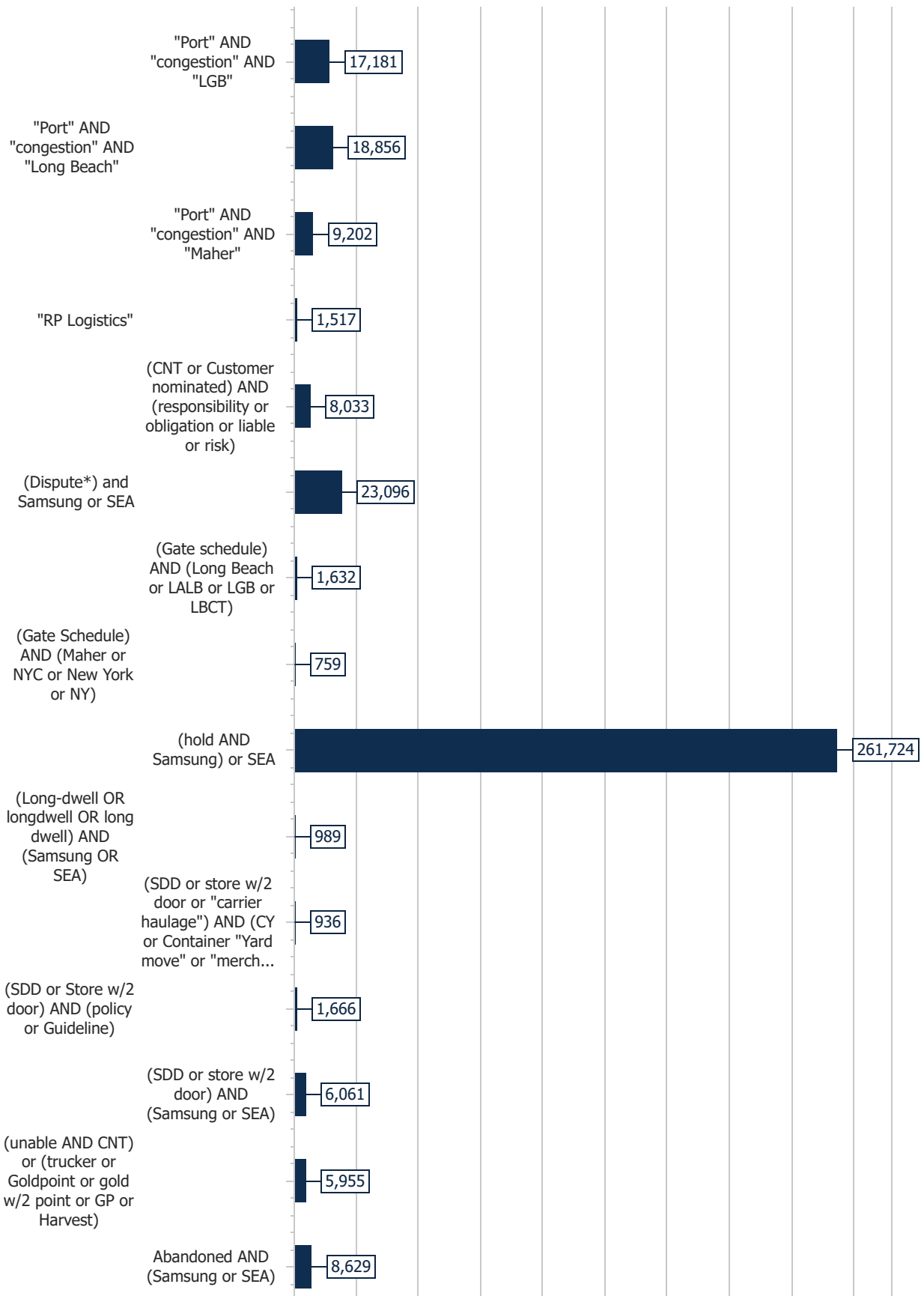
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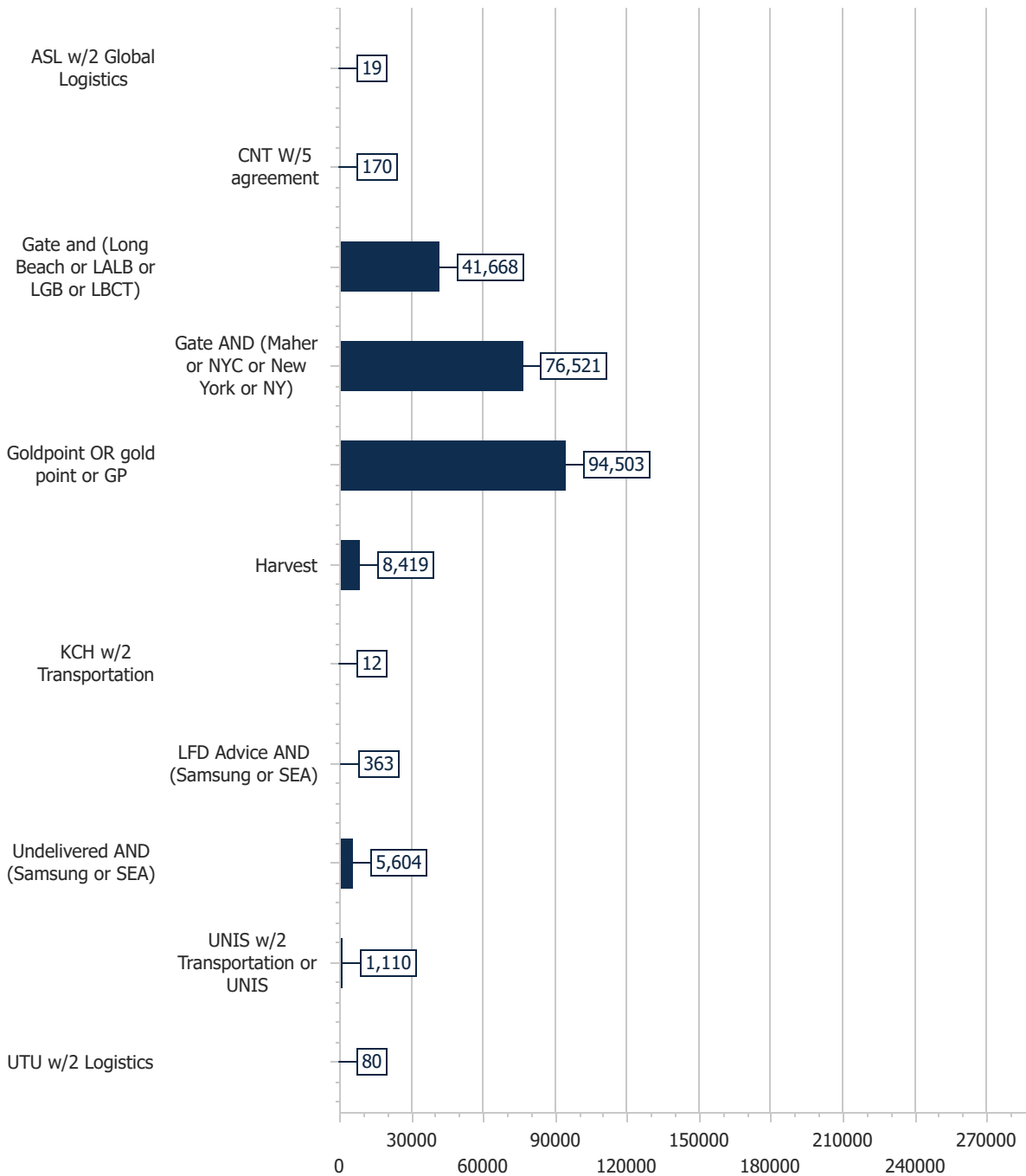


Results Summary

Documents in searchable set	Total documents with hits	Total documents with hits, including Group	Total documents without hits
3,882,775	441,013	785,195	3,441,762







Terms Summary

Term	Documents with hits	Documents with hits, including group	Unique hits
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"AV Logistics" or "AV "	40,287	161,838	24,490
"Chassis" AND "capacity" AND "LALB"	3,178	10,496	20

"Chassis" AND "capacity" AND "LBCT"	3,224	8,398	32
"Chassis" AND "capacity" AND "LGB"	5,235	14,883	92
"Chassis" AND "capacity" AND "Long Beach"	6,033	17,669	38
"Chassis" AND "capacity" AND "Maher"	2,877	6,103	16
"Container" AND "Capacity" AND "LALB"	4,510	13,788	132
"Container" AND "Capacity" AND "LBCT"	5,210	14,716	197
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"Port" AND "congestion" AND "Long Beach"	18,856	44,433	2,308
"Port" AND "congestion" AND "Maher"	9,202	17,325	4,962
"RP Logistics"	1,517	3,261	25
(CNT or Customer nominated) AND (responsibility or obligation or liable or risk)	8,033	24,140	2,795
(Dispute*) and Samsung or SEA	23,096	53,672	496
(Gate schedule) AND (Long Beach or LALB or LGB or LBCT)	1,632	3,403	0
(Gate Schedule) AND (Maher or NYC or New York or NY)	759	2,700	0
(hold AND Samsung) or SEA	261,724	520,681	173,939
(Long-dwell OR longdwell OR long dwell) AND (Samsung OR SEA)	989	3,392	22
(SDD or store w/2 door or "carrier haulage") AND (CY or Container "Yard move" or "merchant haulage" AND conver*)	936	2,713	118
(SDD or Store w/2 door) AND (policy or Guideline)	1,666	4,683	456
(SDD or store w/2 door) AND (Samsung or SEA)	6,061	18,963	12
(unable AND CNT) or (trucker or Goldpoint or gold w/2 point or GP or Harvest)	5,955	12,980	1,281
Abandoned AND (Samsung or SEA)	8,629	18,670	73
ASL w/2 Global Logistics	19	51	0
CNT W/5 agreement	170	538	47

Gate and (Long Beach or LALB or LGB or LBCT)	41,668	90,828	9,015
Gate AND (Maher or NYC or New York or NY)	76,521	154,916	35,604
Goldpoint OR gold point or GP	94,503	229,057	46,802
Harvest	8,419	26,460	1,810
KCH w/2 Transportation	12	12	4
LFD Advice AND (Samsung or SEA)	363	666	14
Undelivered AND (Samsung or SEA)	5,604	10,838	83
UNIS w/2 Transportation or UNIS	1,110	3,201	191
UTU w/2 Logistics	80	156	44

EXHIBIT L

**Before the
Federal Maritime Commission**

Docket No. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE LTD. AND OOCL (EUROPE) LTD.,

Respondents and Third-Party Complainants,

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,

Third-Party Respondent.

DECLARATION OF KENNETH A. CARRUTH, III

I, Kenneth A. Carruth, III, hereby declare:

1. I am over 18 years of age, and make this declaration based upon my personal knowledge unless otherwise stated.
2. I am employed as Assistant Director, CoDiscover.
3. CoDiscover is an eDiscovery vendor retained by Orient Overseas Container Line, Ltd. and OOCL (Europe) Ltd., via their U.S. agent OOCL (USA), Inc. (collectively, "OOCL") to assist in the above-captioned litigation. For an explanation of CoDiscover's services, *see* <https://codiscover.com/our-services/>.
4. I have been employed in this position for 8 years.
5. Since approximately March 14, 2025, I have worked on multiple occasions to coordinate with OOCL employees for the transfer of information collected by OOCL as potentially responsive in this proceeding.

6. To the best of my knowledge, OOCL collected documents from email servers, an enterprise-wide management system known as IRIS-4, and relevant Departmental Microsoft 365 Sharepoint files that were likely to contain relevant information (collectively, the “Original Data”)
7. In total, the Original Data was collected from twenty-three OOCL custodians and sent to CoDiscover.
8. OOCL transferred approximately 3.5 terabytes of Original Data containing 4,888,122 documents to CoDiscover. To prepare for review and ultimate production, CoDiscover ingested this data into a widely-used document production software called Relativity. Due to the size of this collection, the preparation of the Original Data for review alone took approximately 3 weeks.
9. As a part of the document review preparation process, the Original Data was deduplicated and emails were threaded to identify the most inclusive email in each email thread for review. After this preparation, CoDiscover used “Computer-Assisted Learning” (“CAL”) to review the threaded and deduplicated Original Data for relevant documents.
10. CoDiscover used search terms to identify potentially relevant documents, and then leveraged the CAL workflow, which incorporates significant manual reviews, to identify documents relevant to this matter. When the search terms in Exhibit A were applied, a refined set of 871,019 documents were identified (the “Review Materials”).
11. Prior to using CAL for further analysis, the Review Materials were searched for emails sent to, originating from, or carbon copied to email addresses with the following domains for the first production of materials: “samsung.com,” “sea.samsung.com,” and “partner.samsung.com.” I directed my CoDiscover colleague, analyst Evelyn Jordan, to send OOCL’s first production to all counsel of record in this proceeding, and to the best of my knowledge, Ms. Jordan did transmit this first production of documents on August 25, 2025. (OOCL_0000001-OOCL_0014996).

12. Following this first production of documents, Ms. Jordan and I transmitted the following OOCL productions of documents to all counsel of record in this proceeding:
- a. OOCL's second production on September 26, 2025 (OOCL_0014997 - OOCL_0043175);
 - b. OOCL's third production on December 2, 2025 (OOCL_0043176 - OOCL_0047749);
 - c. OOCL's fourth production on December 5, 2025 (OOCL_0047750 - OOCL_0048305);
 - d. OOCL's fifth production on December 22, 2025 (OOCL_0048306 - OOCL_0049094);
 - e. OOCL's sixth production on December 30, 2025 (OOCL_0049095 - OOCL_0053669);
 - f. OOCL's seventh production on January 9, 2026 (OOCL_0053670 - OOCL_0057674);
 - g. OOCL's eighth production on February 19, 2026 (OOCL_0057675 - OOCL_0058575).
13. As indicated by the Bates numbers detailed above, these productions included a total of approximately 58,575 pages of documents.
14. On February 23, 2026, Ms. Jordan received and began to process approximately 91 gigabytes of additional data from OOCL (the "Additional Data").
15. On or around March 3, 2026, together with my CoDiscover colleagues, I analyzed two OOCL custodians after an anomaly with the data was discovered. It appears that this anomaly prevented the CAL system from effectively searching the data for responsive documents. That anomaly, which was the result of an error in the dtSearch index, was resolved by rebuilding the searchable index. A dtsearch index is a specialized database structure that stores the searchable text of documents in an optimized format, allowing very fast keyword searching across large datasets.

16. During the analysis of the dtSearch index, it was observed that documents from certain custodians were not returned for search terms known to exist within those documents. This condition is consistent with an incomplete or corrupted index segment in which certain batches of data were not fully incorporated during the indexing process. This type of issue does not generate an error message or system alert and may not be detectable during routine operations. Upon identification, the index was rebuilt to ensure all documents were properly indexed and searchable. No documents were intentionally withheld from the index or search results.
17. A further search of this data is being conducted and, upon completion, any additional responsive, non-privileged documents that are discovered will be produced.
18. CoDiscover is also currently performing an additional review of all the 3.591 terabytes of documents collected using additional search terms that were provided by SEA's counsel by letter dated March 10, 2026¹, and is also applying additional search terms, specifically the bill of lading and container numbers identified by SEA in a document marked "24-17_SEA_00059845."

I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge and recollection.

Executed in: Philadelphia, PA

Date: May 11, 2026

Declarant Signature: 

Declarant Name: Kenneth A. Carruth, III

¹ See Exhibit B (additional search terms applied).

Exhibit A - Terms Summary

(Container AND delay*) AND (Samsung OR SEA)
(Den* AND cargo) AND (Samsung OR SEA)
(Pay AND direct*) AND (Samsung OR SEA)
(pay* AND demurrage) AND (Samsung OR SEA)
(Release* AND container* AND pay*) AND (Samsung OR SEA)
(Responsib* AND carrier) AND (Samsung OR SEA)
(Samsung or SEA or SDS) AND demurrage
(Samsung or SEA or SDS) AND detention
(Space AND available) AND (Samsung OR SEA)
(trucker w/5 nominated) AND (Samsung OR SEA)
(waive or charge or mitigat* or cancel) AND costs
(waive or charge or mitigat* or cancel) AND demurrage AND (Samsung OR SEA)
(waive or charge or mitigat* or cancel) AND detention
“can’t” w/3 accept
“common carrier”
“motor carrier” or trucker AND (Samsung or SEA or SDS)
“motor carrier” w/3 services
“motor carrier” w/5 agreement
“motor carrier” w/5 CNT
“motor carrier” w/5 nominated
“New York” AND (Samsung or SEA or SDS)
“peel-off”
“Samsung container”
“warehouse” or Facilit* or stor* AND (Samsung or SEA or SDS)
basis AND demurrage
basis AND detention
Bethel AND (Samsung or SEA or SDS)
Cannot w/3 accept
charge* AND responsib* AND (Samsung or SEA or SDS)
Container AND belong
Container w/3 not AND own*
cost* AND responsib* AND (Samsung or SEA or SDS)
Decline* w/3 accept
Deliver* AND delay*
demand* AND pay*
Den* AND space
dispute* AND demurrage
dispute* AND detention
Duplicate* AND bill*
extend w/5 “free time”
fee* AND responsib* AND (Samsung or SEA or SDS)
Handling AND delay*
insufficient AND detail
insufficient AND information
Maher AND (Samsung or SEA or SDS)
Obligation AND (Samsung or SEA or SDS)

Obligation AND carrier
pay* AND detention
Pennsylvania AND (Samsung or SEA or SDS)
Previous* w/3 bill*
Processing AND delay*
Rail* w/3 demurrage
Rail* w/3 storage
Rebill
Refus* AND cargo
Refus* AND space
Responsib* AND (Samsung or SEA or SDS)
Retaliat*
terminal w/3 demurrage
terminal w/3 storage
trucker w/5 agreement
trucker w/5 CNT
Twice AND bill*
Unable w/3 accept
waive w/5 charge or mitigat* or cancel
Warehouse AND delay*

EXHIBIT B- Additional Search Terms Applied

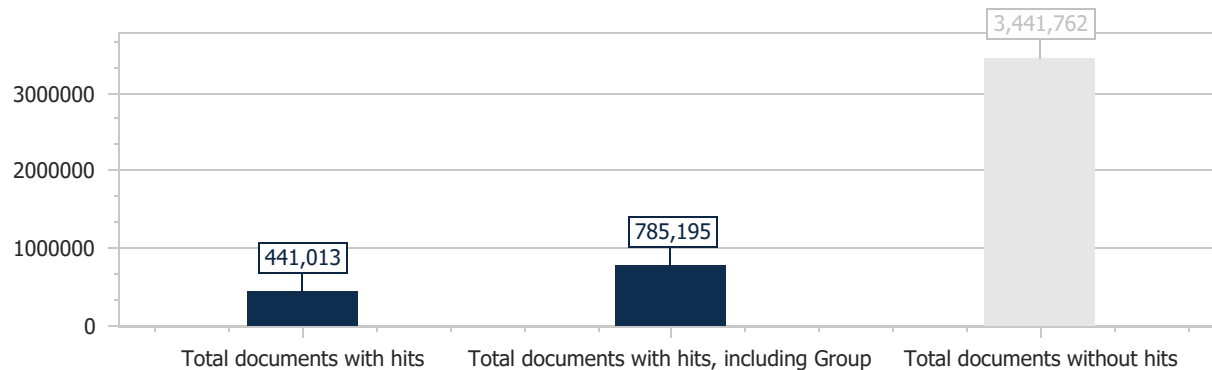


608902.000(ECA)

Search Terms Report

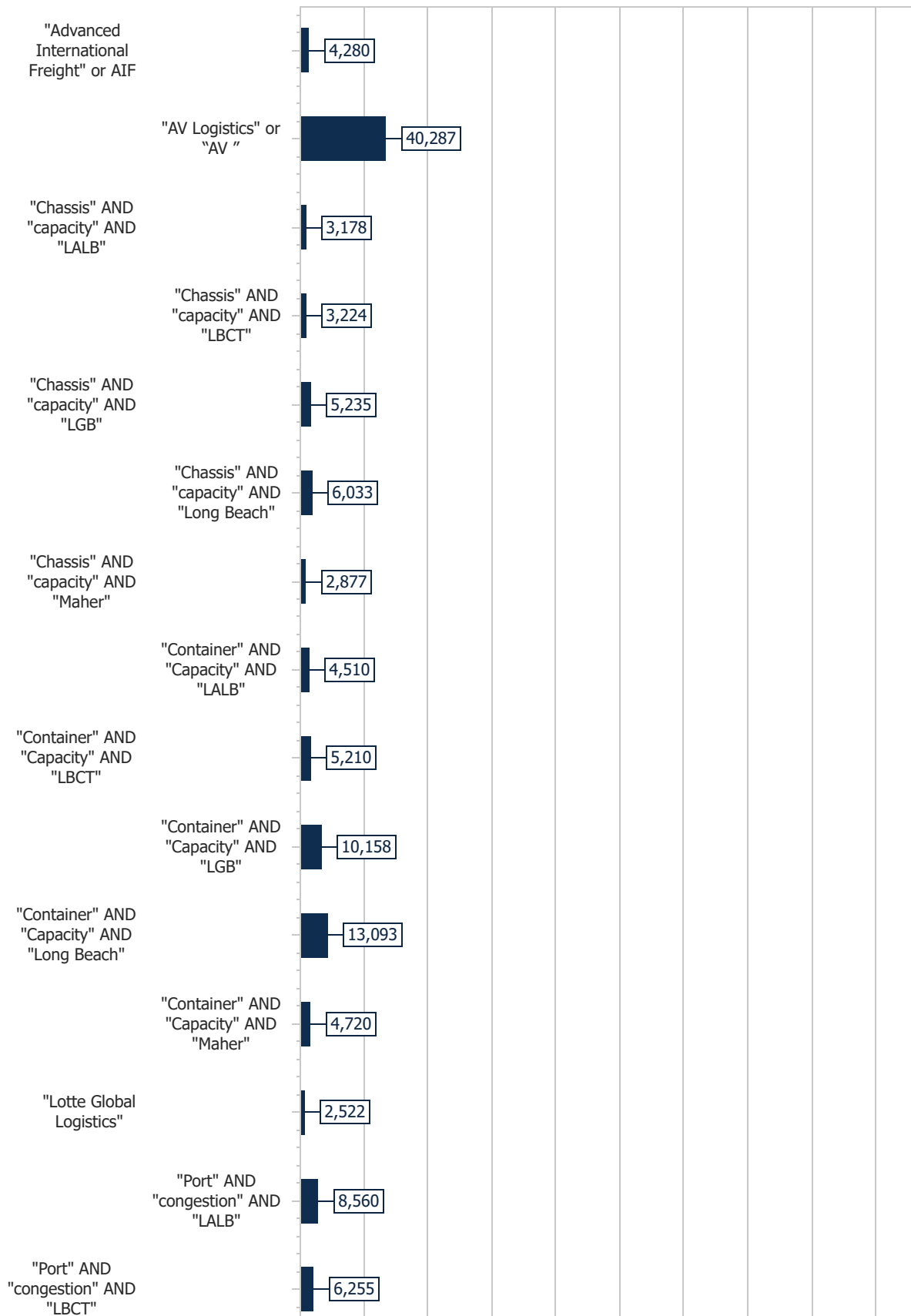
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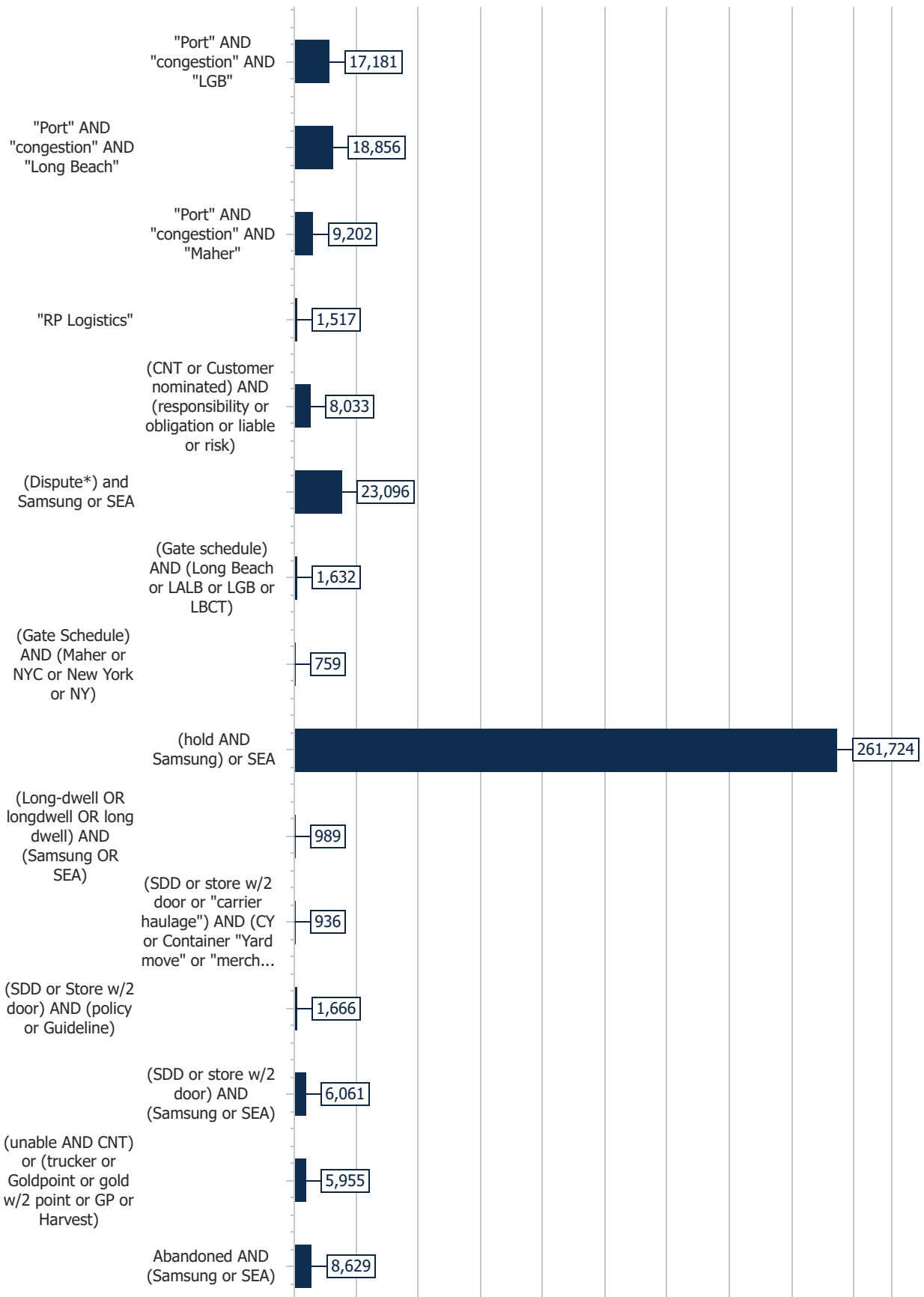
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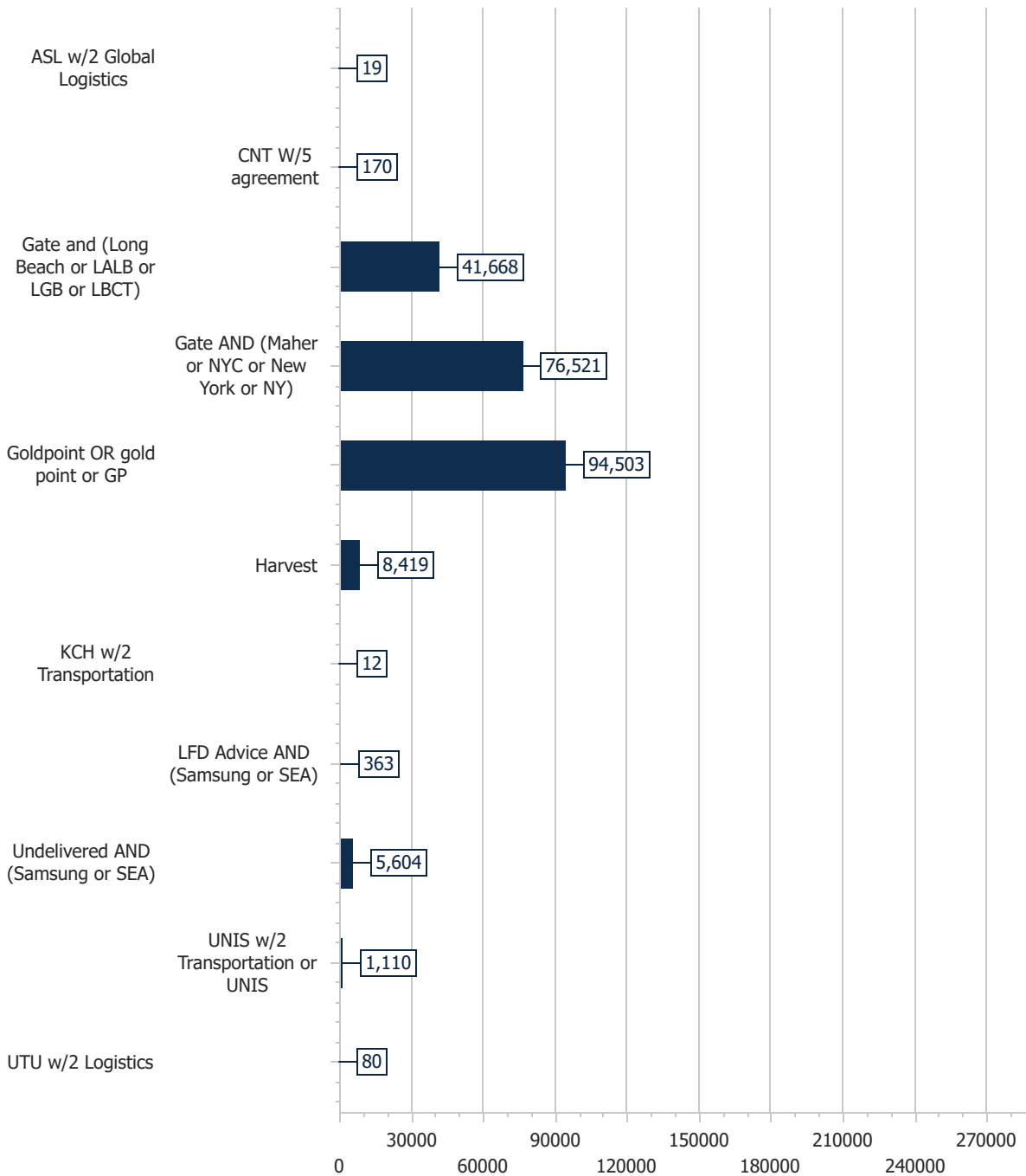


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